

25STCV27954B 25STCV27954B

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 12, 2026

CASE NUMBER

25STCV27954B

MOTION

Motion to Compel Further Discovery Responses

MOVING PARTY

Plaintiff Elsy

Marzillier

OPPOSING PARTY

Defendant Ricardo Amorim

MOTION

Plaintiff Elsy

Marzillier ("Plaintiff") moves to compel further responses from Defendants Mr. Chow Enterprises, Ltd. ("Mr. Chow") to Request for Production of Documents, set one and Defendant Carlos Martinez ("Martinez") to Form Interrogatories, set one.

After Plaintiff filed these motions, Mr. Chow and Martinez served supplemental responses to the discovery requests. Plaintiff then took the motions to compel Mr. Chow and Martinez to further respond to discovery off calendar. Plaintiff moves to compel Defendant Ricardo Amorim ("Amorim") to further respond to Form Interrogatories, set one ("FROG"). Amorim opposes the motion.

ANALYSIS

Amorin's responses to the FROG consist only of objections. As Plaintiff timely filed this motion to compel further responses, Amorim has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) In this regard, Amorim contends he need not respond to the FROG while Amorim's demurrer is pending. Amorim is incorrect. Plaintiff's right to obtain responses to the FROG does not depend on the status of the pleadings. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436). Accordingly, the motion to compel further responses to the FROG is granted.

Amorim also argues the FROG seek irrelevant information. Even if the relevance of the evidence Plaintiff seeks is attenuated, Plaintiff is entitled to responses. (See Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal.App.4th 733, 739, fn. 4 ["the claim that a party is engaged upon a fishing expedition is not, and under no circumstances can be, a valid objection to an otherwise proper attempt to utilize the provisions of the discovery statutes"].) Amorim fails to meet his burden to show the FROG seek irrelevant information such that he need not respond.

Amorim also argues the FROG are unduly burdensome. To

demonstrate responding to discovery requests would be so burdensome as to be oppressive, the responding party must advance evidence of “the quantum of work required” along with evidence to show “the ultimate effect of the burden is incommensurate with the result sought.” (West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County (1961) 56 Cal.2d 407, 417.) Such evidence would include, at a minimum, an estimate of “the total man hours required to accomplish the task.” (Ibid.) Amorim provides no such evidence.

As such, Amorim fails to meet his burden to show the FROG are unduly burdensome.

Additionally, Amorim

contends the FROG invade his privacy rights.

To be sure, Amorim has a right to privacy in “various private or sensitive information regarding [his] personal life” (Hooser v. Superior Court (2000) 84 Cal.App.4th 997, 1003-1004.) However, the information the FROG seek is minimally invasive such that the invasion of Amorim’s privacy rights does not outweigh the need for the discovery. (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1250.) The Court must liberally construe the Civil Discovery Act in favor of permitting discovery. (Pacific Tel. & Tel. Co. v. Superior Court (1970) 2 Cal.3d 161, 173.)

Amorim further contends

the FROG requests documents which implicate the attorney work-product protection. An attorney’s work product which reflects the attorney’s impressions, conclusions, opinions, or legal research or theories, is not discoverable unless the Court determines denial of discovery will unfairly prejudice the proponent in preparing the party’s claim or defense or will result in an injustice. (Code Civ. Proc., §2018.030.) Amorim must permit Plaintiff to conduct discovery regarding Amorim’s defense of this matter to avoid unfair prejudice. As such, Amorim must provide the limited information the FROG seeks.

Amorim’s contention

the FROG are vague and ambiguous is likewise unavailing. “[W]here the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783.) If Amorim found Plaintiff’s definition of “incident” to be vague and ambiguous, Amorim should have responded to the extent possible. Amorim failed to do so.

Amorim's

objections the FROG assume facts not in evidence, call for speculation, and lack foundation are improper objections.

(West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County (1961) 56 Cal.2d 407, 421.) These are objections to the admissibility of evidence, not to discovery.

Consequently, the motion to compel further responses is granted.

The Court finds Amorim's refusal to serve responses to the FROG is an abuse of the discovery process and awards sanctions. The Court imposes sanctions against Amorim and his counsel of record, Jackson Lewis P.C., in the amount of \$2,000, which represents four hours of attorney time to prepare the motion and attend the hearing at \$500 per hour.

CONCLUSION AND ORDER

Amorim is ordered to provide further responses to the FROG within 30 days after receiving notice of this order. Amorim and his counsel of record, jointly and severally, are to pay sanctions in the amount of \$2,000 to Plaintiff, by and through counsel, within 30 days of notice of this order.

Plaintiff is to give notice of the Court's ruling and to file proof of service of same.